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To: Senator Peter Welch – Vermont Democrat

From: Pierce Seigne

Date: September 23, 2026

Re: Federal regulatory framework for cryptocurrency and digital assets

On September 15, 2026, the Senate cloture vote on the CLARITY Act failed 49–50, halting the crypto industry's primary market-structure legislation. Because the Senate Agriculture Committee holds jurisdiction over the CFTC half of any market-structure proposal, Senator Welch occupies a pivotal seat for shaping future bipartisan attempts. While the GENIUS Act passed by pairing stablecoin guardrails with broad bipartisan support, CLARITY faltered as partisan divisions widened over executive conflicts of interest and bank opposition.

SECTION I: Brief Legislative History

The GENIUS Act

President Trump signed the Guiding and Establishing National Innovation for U.S. Stablecoins (GENIUS) Act into law in July 2025 as the first comprehensive federal cryptocurrency framework. The law focuses on dollar-pegged stablecoins, requiring issuers to maintain 1:1 liquid asset reserves, while establishing consumer protections, super-priority insolvency claims, public disclosures, and illicit-finance safeguards.[1]

A powerful coalition of venture capitalists, crypto advocacy groups, and large digital-asset companies such as Coinbase supported the bill. Beyond lobbying, the crypto industry contributed more than $130 million to super PACs supporting pro-crypto candidates in the 2024 election.[2]

The bill's lead sponsor, Senator Bill Hagerty (R-TN), argued that the legislation would strengthen the dollar, increase payment efficiency, and boost demand for Treasury securities,

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1 "Fact Sheet: President Donald J. Trump Signs GENIUS Act into Law – The White House," accessed September 23, 2026, https://www.whitehouse.gov/fact-sheets/2025/07/fact-sheet-president-donald-j-trump-signs-genius-act-into-law/.

2 "The Crypto Industry's Spending on the Election Pays Off - The New York Times," accessed September 23, 2026, https://www.nytimes.com/2024/11/06/technology/crypto-industry-spending-election.html.

echoing other Republicans, including President Trump.[3] Senator Elizabeth Warren (D-MA), a longtime cryptocurrency critic, opposed the bill. Like other skeptics, she argued the framework was too loose and compared it to the deregulation that preceded the 2008 financial crisis.[4]

Despite these objections, the Senate passed the bill 68–30 in June 2025, and the House followed 308–122 in July, marking the first time Congress passed major cryptocurrency legislation, with 18 Senate Democrats providing the crucial bipartisan support needed to clear the 60-vote threshold.[5]

A Member of Congress seeking to pass future digital-asset legislation should replicate this coalition-building strategy. Rather than relying primarily on industry lobbying and PAC spending to advance a lighter regulatory agenda, sponsors should court moderate Democrats, who are interested in seeing more guardrails directly written into the text, like the 1:1 liquid reserve requirements, insolvency protections, and ethics provisions.

The CLARITY Act

Since 2024, federal lawmakers have debated whether the SEC or CFTC should regulate specific crypto assets. The Financial Innovation and Technology for the 21st Century Act (FIT21) passed the House in 2024 but stalled in the Senate[6]. Its successor, the Digital Asset Market Clarity

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3 "Senate Passes Cryptocurrency and Stablecoin Rules Bill," New York Times, June 17, 2025, https://www.nytimes.com/2025/06/17/us/politics/senate-cryptocurrency-bill.html.

4 "On Senate Floor, Warren Urges Colleagues to Use Their Leverage and Vote No on GENIUS Act Until Critical Issues Addressed | United States Committee on Banking, Housing, and Urban Affairs," accessed September 23, 2026, https://www.banking.senate.gov/newsroom/minority/on-senate-floor-warren-urges-colleagues-to-use-their-leverage-and-vote-no-on-genius-act-until-critical-issues-addressed.

5 "S.1582 - 119th Congress (2025-2026): GENIUS Act | Congress.gov | Library of Congress," accessed September 23, 2026, https://www.congress.gov/bill/119th-congress/senate-bill/1582.

6 "House Passes Digital Asset Market Structure Legislation: Financial Innovation and Technology for the 21st Century Act (FIT21) | Insights | Mayer Brown," accessed September 23, 2026, https://www.mayerbrown.com/en/insights/publications/2024/06/house-passes-digital-asset-market-structure-legislation-financial-innovation-and-technology-for-the-21st-century-act-fit21.

(CLARITY) Act (H.R. 3633), was introduced in May 2025 with White House and Republican leadership support.

The bill draws the line between the SEC and CFTC more explicitly by separating the digital asset itself from the transaction in which it was originally sold. The CFTC would gain exclusive oversight of spot markets and anti-fraud enforcement for digital commodities tied to operational, decentralized blockchains. Meanwhile, the SEC would keep authority over assets that function as investment contracts along with capital-raising rounds and centralized token sales.

The House passed the CLARITY Act 294–134 in the same week as the GENIUS Act, propelled by a bipartisan coalition led by House Financial Services Committee Chair French Hill (R-AR), House Agriculture Chair Glenn "GT" Thompson (R-PA), and Democratic co-leads Angie Craig (D-MN) and Don Davis (D-NC).[7] Crypto companies and venture capital firms again mobilized in favor, but the American Bankers Association broke from the coalition, lobbying against interest payments on stablecoins, which banks viewed as a competitive threat to insured deposits.[8] In the Senate, the bill went to the Banking Committee, where revisions kept it for over ten months.[9]

By the time the bill reached the Senate floor in September 2026, its momentum had faded. The partisan divide over cryptocurrency had deepened amid growing scrutiny of President Trump's financial ties to the industry and the billions in profits the BBC reports he has earned since

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7 Don Davis, "U.S. House of Representatives Passes CLARITY Act with Bipartisan Support," press release, July 2025, https://dondavis.house.gov/media/press-releases/us-house-representatives-pass-clarity-act-bipartisan-support;

8 "Senate Banking Committee Advances Clarity Act," *ABA Banking Journal*, May 14, 2026, https://bankingjournal.aba.com/2026/05/senate-banking-committee-advances-clarity-act/.

9 "Crypto Industry Pushes a Bill to Tilt Regulation in Its Favor - The New York Times," accessed September 23, 2026, https://www.nytimes.com/2026/05/14/technology/cryptocurrency-clarity-act-senate.html.

beginning his second term.[10] Representative Maxine Waters (D-CA) warned that the bill would harm consumers and "plant the seeds for the next financial crisis."[11]

On September 15, 2026, a Senate cloture vote on the bill failed 49–50, eleven votes short of the 60 needed to clear the filibuster and advance it[12].

SECTION II: Key Legislators

Senator Cynthia Lummis (R-WY): Leading Supporter

Senator Lummis chairs the Senate Banking Subcommittee on Digital Assets and is the most prominent Republican advocate for a comprehensive digital-asset framework. Through proposals such as the Lummis-Gillibrand Responsible Financial Innovation Act, she has shaped market-structure legislation that defines the regulatory boundary between the SEC and CFTC, codifies stablecoin reserve rules, and integrates digital assets into the federal banking system. She also co-released the Senate's final CLARITY text with Senators Tim Scott and John Boozman.[13]

Wyoming has established itself as a national leader in blockchain innovation, with several state statutes governing digital assets.[14] Lummis's constituents include state-chartered crypto banks and

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10 "From Truman's Pension to Trump's Billions — a White House Windfall Unmatched by Any President," BBC News, accessed September 23, 2026, https://www.bbc.com/news/articles/c70yk07vq0po.

11 "Ranking Member Maxine Waters at Rules Committee on Dangerous Crypto Bills: “Republicans’ Next Order of Business Is a Billion-Dollar Handout to the President Himself.” | U.S. House Committee on Financial Services Democrats," accessed September 23, 2026, https://democrats-financialservices.house.gov/news/documentsingle.aspx?DocumentID=413634.

12 Jesse Hamilton, "Crypto's Biggest Senate Push Falls Flat as the Clarity Act Fails to Clear a Crucial Procedural Vote," CoinDesk, September 15, 2026, https://www.coindesk.com/policy/2026/09/15/crypto-clarity-act-flames-out-in-failed-u-s-senate-vote.

13 "Lummis, Boozman, Scott Release Final Clarity Act Text » Senator Cynthia Lummis," accessed September 23, 2026, https://www.lummis.senate.gov/press-releases/lummis-boozman-scott-release-final-clarity-act-text/.

14 "Senator Cynthia Lummis on X: "Wyoming built a legal framework for digital assets companies years before Washington even started paying attention to digital assets, and we’ve proven it works. The Clarity Act takes that same instinct— clear rules that keep builders here— and applies it nationally." / X," accessed September 23, 2026, https://x.com/SenLummis/status/2095542095171690761.

rural energy producers who mine cryptocurrency. These constituents expect her to protect Wyoming's state-level framework and to block federal rules that could restrict their operations.

Her announcement that she will not seek reelection insulates her from partisan pressures, focusing her on cementing a digital-asset legacy.[15]

Lummis is not persuadable toward restrictive measures. She will not support bans on digital assets, but she has shown willingness to negotiate on consumer disclosures and illicit-finance protections.[16]

Senator Elizabeth Warren (D-MA): Leading Opponent

As Ranking Member of the Senate Banking Committee, Warren is the leading progressive opponent of the CLARITY Act. Her rhetoric has shifted from warning primarily of a repeat of the 2008 financial crisis to focusing on executive corruption. She introduced the Ending Presidential Corruption in Banking Act. On the Senate floor, Warren called Trump "the first President in history to own and oversee his own bank." She warned that his family's direct issuance of the USD1 stablecoin turns a federal charter into "a new vehicle for billionaires, corporations, and foreign countries to bribe him."[17]

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15 Katie Klingsporn, "Sen. Cynthia Lummis Won't Seek Reelection in 2026," *WyoFile*, December 19, 2025, https://wyofile.com/sen-cynthia-lummis-wont-seek-reelection-in-2026/.

16 "Why the Clarity Act is the one shot to save US crypto regulation," accessed September 23, 2026, https://thehill.com/opinion/finance/6086356-lummis-clarity-act-crypto/.

17 "U.S. Senate Committee on Banking, Housing, and Urban Affairs, Minority, "Ahead of Senate Crypto Vote, Warren and Colleagues Seek Vote on Senate Floor to Stop Trump's Self-Dealing, End Presidential Corruption in Banking," press release, September 14, 2026, https://www.banking.senate.gov/newsroom/minority/ahead-of-senate-crypto-vote-warren-and-colleagues-seek-vote-on-senate-floor-to-stop-trumps-self-dealing-end-presidential-corruption-in-banking.

To her Massachusetts voters and to Americans broadly, Warren frames crypto deregulation as an insider windfall set against cost-of-living concerns. She argues that the bill would "turbocharge President Donald Trump's ability to rake in billions and billions of dollars."[18] Warren works to keep the Democratic caucus unified against industry-backed proposals and to prevent moderate defections. She is not persuadable on the current bill and is likely to oppose any market-structure proposal that weakens SEC authority or leaves ethics enforcement to political appointees, supporting only legislation that applies strict anti-money-laundering requirements to all market participants, bars executive self-dealing, and prioritizes passing the Ending Presidential Corruption in Banking Act.[19]

SECTION III: Executive

The Trump administration's digital-asset policy is a sharp reversal from both the Biden administration and the President's own first-term stance. As recently as 2021, Donald Trump called Bitcoin a "scam against the dollar."[20] During his 2024 campaign, however, he adopted a pro-growth, technology-first agenda and pledged to make America the "crypto capital of the world."[21]

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18 "Ahead of Senate Crypto Vote, Warren and Colleagues Seek Vote on Senate Floor to Stop Trump's Self-Dealing, End Presidential Corruption in Banking | United States Committee on Banking, Housing, and Urban Affairs," accessed September 23, 2026, https://www.banking.senate.gov/newsroom/minority/ahead-of-senate-crypto-vote-warren-and-colleagues-seek-vote-on-senate-floor-to-stop-trumps-self-dealing-end-presidential-corruption-in-banking.

19 Ibid.

20 "Donald Trump calls Bitcoin 'a scam against the dollar'," accessed September 23, 2026, https://www.bbc.com/news/business-57392734.

21 The White House, "Fact Sheet: The President's Working Group on Digital Asset Markets Releases Recommendations to Strengthen American Leadership in Digital Financial Technology," July 30, 2025, https://www.whitehouse.gov/fact-sheets/2025/07/fact-sheet-the-presidents-working-group-on-digital-asset-markets-releases-recommendations-to-strengthen-american-leadership-in-digital-financial-technology/.

The White House’s Framework

Shortly after taking office, President Trump signed Executive Order 14178, "Strengthening American Leadership in Digital Financial Technology."[22] The order revoked the Biden administration's risk-focused framework (EO 14067). In its place, it set an expansive, forward-looking mandate that prioritizes financial innovation, access to the banking system, and competitive capital markets.[23] In April 2025, the administration also disbanded the Justice Department's National Cryptocurrency Enforcement Team, which targeted criminal misuse of digital assets.[24]

In July 2025, the President's Working Group on Digital Asset Markets published a report laying out how Cabinet departments and independent agencies should approach digital-asset oversight.[25] The report rejects what it calls the Biden administration's "regulation by enforcement."[26] It directs regulators to establish clear definitions and to limit traditional oversight to fraud, illicit finance, and systemic risk. To resolve jurisdictional confusion between agencies, it asks Congress to give the CFTC authority over spot markets for digital assets that are not securities.

Cabinet Members

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22 Exec. Order No. 14178, 90 Fed. Reg. 8647 (January 31, 2025).

23 Ibid.

24 Chainalysis Team, "The DOJ's NCET Disbanded: What This Means for Digital Assets," *Chainalysis* (blog), April 22, 2025, https://www.chainalysis.com/blog/ncet-blanche-memo/.

25 President's Working Group on Digital Asset Markets, Strengthening American Leadership in Digital Financial Technology (Washington, DC: The White House, July 2025), https://www.whitehouse.gov/wp-content/uploads/2025/07/digital-Assets-Report-EO14178.pdf.

26 President's Working Group, Strengthening American Leadership, 6.

Treasury Secretary Scott Bessent has championed digital assets and dollar-backed stablecoins as vital tools to sustain global demand for U.S. Treasuries and reinforce the power of the U.S. dollar.[27]

SEC Chair Paul Atkins is an outspoken crypto advocate and has an approach in favor of tailored exemptions. In February 2025, under Acting Chair Mark Uyeda prior to Atkins taking office, the SEC dropped its lawsuit against Coinbase, part of a broader shift where the agency dropped several high-profile lawsuits against crypto firms.[28] CFTC Chair Michael Selig has moved to expand his agency's oversight of crypto spot trading and has partnered with the SEC to end the two agencies' jurisdictional infighting.[29]

West Wing Staff

If you are seeking a direct meeting with administration staff on digital-asset policy, the current primary point of contact is Patrick Witt, executive director of the President's Council of Advisers on Digital Assets and the White House's chief negotiator on the CLARITY Act.[30]

Deregulation & World Liberty Financial

Critics, including Public Citizen, argue that several of the Working Group’s recommendations align closely with the business of World Liberty Financial (WLF), a crypto firm in which President

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27 U.S. Department of the Treasury, "Statement from U.S. Secretary of the Treasury Scott Bessent on Enactment of the GENIUS Act," press release, July 18, 2025, https://home.treasury.gov/news/press-releases/sb0197.

28 "Cryptocurrency advocate Paul Atkins is Trump's nominee to chair the Securities and Exchange Commission | PBS News," accessed September 23, 2026, https://www.pbs.org/newshour/politics/cryptocurrency-advocate-paul-atkins-is-trumps-nominee-to-chair-the-securities-and-exchange-commission.

29 Olivier Acuna, "CFTC Chair Michael Selig Outlines DeFi, Prediction Market Rulemaking Plans," CoinDesk, March 10, 2026, https://www.coindesk.com/policy/2026/03/10/cftc-chair-highlights-wide-crypto-agenda-including-rules-on-defi-prediction-markets.

30 Felix Ng, "Patrick Witt Defers Military Training as CLARITY Heads to Senate," Cointelegraph, July 21, 2026, https://cointelegraph.com/news/patrick-witt-defers-military-training-as-clarity-heads-to-senate.

Trump and his family hold an interest of about 38 percent.[31] The report calls for faster federal bank-charter approvals, even recommending automatic approval when regulators miss their deadlines. It also supports removing the requirement that banks obtain prior regulatory approval before holding stablecoin reserves or processing crypto payments.[32] In August 2026, WLF's trust company received preliminary conditional approval for a national trust bank charter from the Office of the Comptroller of the Currency (OCC).[33]

These policies have coincided with substantial personal gains for the President and his family. According to President Trump’s mandatory financial disclosure, he generated $1.4 billion from his crypto businesses last year.[34]

SECTION IV: Agencies and the Bureaucracy

If passed, CLARITY Act implementation would fall mainly to the SEC and CFTC, with Treasury, the GAO, and banking regulators playing supporting roles.[35]

A statute of this kind sets the system's architecture, but the agencies will need to fill in the details through rulemaking, registration, supervision, guidance, and enforcement. The CLARITY Act's core distinction between a token and the transaction in which it was first sold means a token

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31 Zach Everson, "Conflict Coin: How the Trumps' Billion-Dollar Crypto Stake Depends on a Company That Helped Iran Evade Sanctions," Public Citizen, April 27, 2026, https://www.citizen.org/article/trump-crypto-world-liberty-financial-binance-iran-sanctions/.

32 President's Working Group, Strengthening American Leadership, 64, 71–72.

33 Tyler Pathe, "Trump-Backed World Liberty Financial Secures Preliminary US National Trust Bank Charter," FinTech Futures, August 17, 2026, https://www.fintechfutures.com/regulatory-actions/world-liberty-financial-conditional-approval-us-bank-charter.

34 "From Truman's pension to Trump's billions - a White House windfall unmatched by any president," accessed September 23, 2026, https://www.bbc.com/news/articles/c70yk07vq0po.

35 U.S. House Committee on Financial Services, "Section-by-Section: Digital Asset Market Clarity (CLARITY) Act of 2025," July 10, 2025, https://financialservices.house.gov/uploadedfiles/2025-07-10_-_sbs_-_clarity_act_of_2025_final.pdf.

might begin under SEC oversight and later move out of it. Deciding when that shift occurs will be left largely to regulators. The bill also deliberately creates overlapping responsibilities. A Coinbase-style platform, for example, could trade security tokens, digital commodities, and stablecoins at the same time, which would put it under both the SEC and the CFTC and require the two agencies to coordinate.[36]

This dual-agency approach faces various practical hurdles. The SEC and CFTC have very different institutional cultures and ideological leanings which can create a classic principal–agent problem: the goals of agency leaders and career staff do not always align with Congress, making oversight difficult. More practically, the CFTC has a much smaller budget and staff than the SEC, leaving it poorly equipped to take on broad spot-market oversight without substantial new resources.[37]

Even after a statute passes, agencies retain wide discretion over enforcement, including deciding who gets investigated, which violations warrant action, how severe penalties should be, and when to issue guidance or study issues like DeFi, illicit finance, and foreign participation.[38]

Agencies could weaken the law if political or regulatory priorities change. Regulators can blunt the bill's impact by dragging out rulemakings, writing narrow definitions, or simply demoting crypto investigations to a low enforcement priority. Moreover, because enforcement remains discretionary, a future administration could reverse course overnight, much like the Trump administration's pullback on enforcement.[39]

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36 House Committee on Financial Services, "Section-by-Section: CLARITY Act."

37 Mark Schoeff Jr., "Lawmakers Seek to Boost CFTC Budget to Take on Crypto Oversight," Roll Call, February 24, 2026, https://rollcall.com/2026/02/24/lawmakers-seek-to-boost-cftc-budget-to-take-on-crypto-oversight/.

38 House Committee on Financial Services, "Section-by-Section: CLARITY Act," §§ 504–511.

39 Chainalysis Team, "NCET Disbanded"; SEC, "Dismissal of Civil Enforcement Action Against Coinbase."

SECTION V: Conclusion

Passing federal digital-asset legislation depends on aligning fragile industry-banking coalitions, overcoming the Senate's 60-vote threshold, addressing executive conflicts of interest, and managing agency discretion. A critical uncertainty remains whether ethics guardrails can win necessary Democratic votes when concerns center on the President's personal holdings, given that CLARITY failed despite incorporating over 120 Democratic amendments. For Senator Welch, CFTC jurisdiction on the Agriculture Committee leaves him centrally positioned to determine whether future market-structure legislation can balance innovation with meaningful bipartisan safeguards.

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